

**SENATE . . . . . No. 417****The Commonwealth of Massachusetts**

PRESENTED BY:

***Patrick M. O'Connor***

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to recess for elementary and middle school students.

PETITION OF:

| NAME:                         | DISTRICT/ADDRESS:                                 |                  |
|-------------------------------|---------------------------------------------------|------------------|
| <i>Patrick M. O'Connor</i>    | <i>First Plymouth and Norfolk</i>                 |                  |
| <i>Angelo J. Puppolo, Jr.</i> | <i>12th Hampden</i>                               | <i>1/28/2025</i> |
| <i>Joanne M. Comerford</i>    | <i>Hampshire, Franklin and Worcester</i>          | <i>1/30/2025</i> |
| <i>Vanna Howard</i>           | <i>17th Middlesex</i>                             | <i>1/30/2025</i> |
| <i>Jacob R. Oliveira</i>      | <i>Hampden, Hampshire and Worcester</i>           | <i>2/7/2025</i>  |
| <i>James K. Hawkins</i>       | <i>2nd Bristol</i>                                | <i>2/12/2025</i> |
| <i>Patricia D. Jehlen</i>     | <i>Second Middlesex</i>                           | <i>2/20/2025</i> |
| <i>Bruce E. Tarr</i>          | <i>First Essex and Middlesex</i>                  | <i>2/26/2025</i> |
| <i>James B. Eldridge</i>      | <i>Middlesex and Worcester</i>                    | <i>2/28/2025</i> |
| <i>Brendan P. Crighton</i>    | <i>Third Essex</i>                                | <i>3/26/2025</i> |
| <i>Paul W. Mark</i>           | <i>Berkshire, Hampden, Franklin and Hampshire</i> | <i>3/28/2025</i> |
| <i>Adam J. Scanlon</i>        | <i>14th Bristol</i>                               | <i>4/9/2025</i>  |
| <i>Sal N. DiDomenico</i>      | <i>Middlesex and Suffolk</i>                      | <i>4/17/2025</i> |
| <i>John J. Marsi</i>          | <i>6th Worcester</i>                              | <i>5/6/2025</i>  |
| <i>Rebecca L. Rausch</i>      | <i>Norfolk, Worcester and Middlesex</i>           | <i>5/21/2025</i> |
| <i>Pavel M. Payano</i>        | <i>First Essex</i>                                | <i>6/23/2025</i> |

# SENATE . . . . . No. 417

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By Mr. O'Connor, a petition (accompanied by bill, Senate, No. 417) of Patrick M. O'Connor, Angelo J. Puppolo, Jr., Joanne M. Comerford, Vanna Howard and other members of the General Court for legislation relative to mandatory recess for elementary and middle school students. Education.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
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An Act relative to recess for elementary and middle school students.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           Chapter 71 of the General Laws is hereby amended by inserting after section 3 the  
2 following new section:-

3           Section 3A. (a) Except as otherwise herein provided, all students in grades kindergarten  
4 through eight attending a public or charter school in the commonwealth shall receive at least  
5 thirty consecutive minutes of supervised, safe, and unstructured free-play recess per school day  
6 which shall be held outdoors whenever the weather and air quality permits. If recess is held  
7 indoors due to weather or air quality, a public or charter school shall use an appropriate space  
8 that promotes physical activity. As used herein, the term "free-play recess" shall mean an  
9 unstructured environment that is supervised by appropriate school personnel or staff.

10           (b) No public or charter school serving students in grades kindergarten through eight  
11 shall decrease the amount of time it allots and provides to students for free-play recess as a result

of any changes in standards or curriculum that the school is required to or chooses to adopt and shall not withhold recess for the purposes of providing academic or other services under an individualized education plan, 504 or other student support service, including the completion of ordinary classroom work. The department shall not exclude recess from structured learning time requirements for students in grades kindergarten through eight and shall not increase the total number of hours required in the school year to meet the provisions of this section.

(c) A public or charter school serving students in grades kindergarten through eight may provide less than thirty consecutive minutes of free-play recess on school days with delayed openings, early dismissals or other schedule changes that result in a school day that is shorter than a standard day in said public or charter school. The requirements of this section shall not apply to school days in which there is a field trip.